

COMMERCIAL LEASE AGREEMENT

Property and Rent Consult — Ghana Edition

Subject to the Rent Act, 1963 (Act 220) and the Contracts Act, 1960 (Act 25)

PARTIES

COMMERCIAL LEASE AGREEMENT made this _____ day of _____, _____

LANDLORD / LESSOR

Full Name / Company Name: _____

Ghana Card / RC Number: _____

Registered Address: _____

Phone: _____

Email: _____

(hereinafter referred to as "the Landlord")

TENANT / LESSEE

Full Name / Company Name: _____

Ghana Card / RC Number / TIN: _____

Nature of Business: _____

Registered / Trading Address: _____

Phone: _____

Email: _____

(hereinafter referred to as "the Tenant")

PREMISES

Property Address: _____

Total Floor Area (sqm): _____

Floor / Level: _____

Ghana Post GPS: _____

Premises Type:

☐ Office

☐ Shop / Retail

☐ Warehouse

☐ Salon

☐ Clinic / Consulting Room

☐ Restaurant

☐ Other

RECITALS

WHEREAS the Landlord is the owner or authorised agent of the Premises and is willing to let the same for commercial use on the terms herein; AND WHEREAS the Tenant wishes to take the Premises for the purpose of conducting lawful commercial operations; NOW THEREFORE the parties agree as follows:

CLAUSE 1 — TERM

1.1 The Landlord lets and the Tenant takes the Premises for a fixed term of _____ years commencing on _____ and ending on _____.

1.2 The Tenant shall notify the Landlord in writing not less than _____ [60/90] days before expiry if they wish to renew. Renewal is not automatic and requires a fresh written agreement.

1.3 On expiry without renewal, the Tenant shall immediately vacate and deliver up vacant possession of the Premises.

CLAUSE 2 — PERMITTED USE

2.1–2.4: Use solely for: _____. Comply with all applicable laws. No residential use. Obtain and maintain all licences and permits required.

CLAUSE 3 — RENT

3.1 The Tenant shall pay rent at GHS _____ per [month/year/quarter], payable in advance as set out in Clause 4.

3.2 Rent shall be paid without deduction. 3.3 Any rent review shall be subject to _____ [90/180] days' prior written notice.

3.4 Disputes over a proposed rent increase may be referred to arbitration or the Rent Control Department.

CLAUSE 4 — ADVANCE PAYMENT AND DEPOSIT

4.1 Advance rent: _____ [months/years] totalling GHS _____ at signing. 4.2 Security deposit: GHS _____ at signing, held against unpaid rent, damage, and breach. 4.3 Landlord shall issue written receipts for all payments. 4.4 Deposit returned within 21 days of vacation, subject to verified deductions.

CLAUSES 5–14 — UTILITIES, OBLIGATIONS, ALTERATIONS, SIGNAGE, INSURANCE, VACATION, TERMINATION, DISPUTES, GENERAL

5: Tenant's direct responsibility: Electricity / Water / Internet / Security / Refuse / Air Con maintenance. Service charges: GHS _____ per month. No additional fittings without consent.

6: Landlord shall deliver premises fit for permitted use, maintain structural fabric, maintain shared areas, not interfere with quiet enjoyment, give 48 hours' entry notice.

7: Tenant shall pay on time; keep interior clean; not alter, sublet, or assign without consent; not store hazardous goods; comply with all laws; permit entry with 48 hours' notice; remove all equipment on termination.

8: Alterations with prior written consent only. Carried out by qualified contractors at Tenant's expense. On termination, remove or leave in place as agreed in writing.

9: Signage with prior written consent. Comply with Municipal Assembly by-laws. Remove on termination and make good.

10: Landlord insures structural fabric. Tenant insures business contents, stock, equipment, and public liability (minimum GHS _____ per occurrence). Evidence of insurance provided on request.

11: On vacation: vacate by vacation date, return clean, return all keys, make good damage beyond fair wear and tear. Joint exit inspection within 48 hours.

12: Terminate at end of term by _____ [6] months' written notice. Landlord may terminate early for: non-payment, material breach (21 days' notice to remedy), insolvency, illegal use. Tenant may terminate early only with Landlord's written agreement.

13: Disputes — direct negotiation first. If unresolved within 21 days, refer to arbitration under Act 798 or court of competent jurisdiction. Rent Control Department for matters within its jurisdiction.

14: Entire agreement. Variations in writing. Governed by laws of Ghana. Severability.

EXECUTION

SIGNED by the LANDLORD:

Full Name: _____

Signature: _____

Date: _____

Witness Name: _____

Witness Signature: _____

SIGNED by the TENANT:

Full Name: _____

Signature: _____

Date: _____

Witness Name: _____

Witness Signature: _____

SCHEDULE 1 — DESCRIPTION AND CONDITION OF PREMISES AT COMMENCEMENT

(Record condition of floors, walls, ceilings, fittings, electrical points, plumbing, and any landlord-installed equipment)

SCHEDULE 2 — APPROVED FIT-OUT WORKS (IF ANY)

(Description of any works pre-approved at the time of signing)

SCHEDULE 3 — SPECIAL CONDITIONS

1. _____
2. _____
3. _____